

Debts Recovery Appellate Tribunal (Procedure For Appointment As Presiding Officer Of The Appellate Tribunal) Rules, 1998

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Debts Recovery Appellate Tribunal (Procedure For Appointment As Presiding Officer Of The Appellate Tribunal) Rules, 1998

UNION OF INDIA

India

Debts Recovery Appellate Tribunal (Procedure For Appointment As Presiding Officer Of The Appellate Tribunal) Rules, 1998

Rule

DEBTS-RECOVERY-APPELLATE-TRIBUNAL-PROCEDURE-FOR-APPOINTMENT-AS-PRESIDING-OFFICER-OF-TH E-APPELLATE-TRIBUNAL-RULES-1998 of 1998

Published on 19 January 1998

Commenced on 19 January 1998

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Debts Recovery Appellate Tribunal (Procedure For Appointment As Presiding Officer Of The Appellate Tribunal) Rules, 1998

Published vide Notification Gazette of India, Extra, Part 2, Section 3(i), dated 19.1.1998.

1576.

Notification No. G.S.R. 31(E), January 19, 1998.- In exercise of the powers conferred by Section 9 read with clause (e)

of sub-section (2) of Section 36 of the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993

), the Central Government hereby makes the following rules, namely:

1.

Short title and commencement.-

(1)

These rules may be called the Debts Recovery Appellate Tribunal (Procedure for appointment as Presiding Officer of the Appellate Tribunal) Rules, 1998.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.-

In these rules, unless the context otherwise requires:-

(a)

"Act" means the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993

);

(b)

"Appellate Tribunal" means the Debts Recovery Appellate Tribunal established under Section 8 of the Act;

(c)

"Presiding Officer" means a person appointed as Presiding Officer of an Appellate Tribunal under Section 9 of the Act;

(d)

"Reserve Bank" means the Reserve Bank of India constituted under Section 3 of the Reserve Bank of India Act, 1934 (2 of 1934

);

(e)

all other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Method of appointment under Section 9 of the Act.-

For the purpose of appointment to the post of a Presiding Officer, there shall be a Selection Committee consisting of:-

(i)

The Chief Justice of India or a Judge of the Supreme Court of India as nominated by the Chief Justice of India;

(ii)

the Secretary to the Government of India in the Ministry of Finance (Department of Economic Affairs);

(iii)

the Secretary to the Government of India in the Ministry of Law and Justice;

(iv)

the Governor, of the Reserve Bank or the Deputy Governor of the Reserve Bank nominated by the Governor of the Reserve Bank;

(v)

[Secretary or Additional Secretary to the Government of India in the Ministry of Finance, Department of Financial Services.]

[Substituted by Notification No. G.S.R. 3 (E) dated 4.1.2011 (w.e.f. 19.1.1998)]

(2)

The Chief Justice of India the Judge of the Supreme Court shall be the Chairman of the Selection Committee.

(3)

Any three members of the Committee including the Chairman shall form a quorum for meeting of the Committee.

(4)

The Selection Committee may devise its own procedure for selecting a candidate for appointment as Presiding Officer.

(5)

The Selection Committee shall recommend persons for appointment as Presiding Officer from amongst the persons on the list of candidates prepared by the Ministry of Finance after inviting applications therefore by advertisement.

(6)

The Central Government shall on the basis of the recommendations of the Selection Committee make a list of persons selected for appointment as Presiding Officer and the said list shall be valid for a period of two years. The appointment of a Presiding Officer shall be made from the list so prepared.

4.

Medical Fitness.-

No person shall be appointed as a Presiding Officer unless he is declared medically fit by a Medical Board to be constituted by the Central Government for the purpose unless he has already been declared fit by an equivalent authority.

5.

Interpretation.-

If any question arises relating to the interpretation of these rules the same shall be referred to the Central Government for its decision.

6.

Saving.-

Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes, other Backward Classes, Ex-Servicemen and other special categories of persons, in accordance with the orders issued by the Central Government from time to time in this regard.

7.

Oaths of office and secrecy.-

Every person appointed to be Presiding Officer under Section 9 of the Act shall, before entering upon his office, make and subscribe an oath of office and secrecy in the Forms annexed to these rules.

ANNEXURE

FORM-I

(See Rule 7)

Form Of Oath Of Office For Presiding Officer Of The Debts Recovery Appellate Tribunal

"I(Name of the Presiding Officer) having been appointed as Presiding Officer do solemnly affirm/do swear in the name of the God that I will faithfully and consciously discharge my duties as Presiding Officer to the best of my ability, knowledge and judgment, without fear or favour, affection or ill-will.

Name Of The Presiding Officer Debts Recovery Appellate Tribunal

FORM-II

(See Rule 7)

Form Of Oath Of Secrecy For Presiding Officer Of The Debts Recovery Appellate Tribunal.

I(Name of the Presiding Officer) having been appointed as Presiding Officer do solemnly affirm/do swear in the name of the God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become know to me as Presiding Officer of said Debts Recovery Appellate Tribunal except as may be required for the due discharge of my duties as the Presiding Officer.

Name Of The Presiding Officer Debts Recovery Appellate Tribunal

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